

HOUSE BILL 39

By Davis

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 49 and Title 67, relative to the
Menstrual Hygiene Products Accessibility Act.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-417, is amended by deleting the section and substituting instead the following:

(a) This section is known and may be cited as the "Menstrual Hygiene Products Accessibility Act."

(b) As used in this section:

(1) "Eligible school" means a public school, including a public charter school, that is a senior high school, as defined in § 49-6-401; and

(2) "Feminine hygiene product":

(A) Means a product or material designed for feminine hygiene in connection with menstruation or other genital-tract secretions; and

(B) Includes tampons, panty liners, menstrual cups, sanitary napkins, and other similar personal products or materials.

(c) Each LEA and public charter school shall provide feminine hygiene products, at no charge, in all women's and girls' bathrooms, in all locker rooms, and with the school nurse in each eligible school building where instruction is provided, excluding bathrooms and locker rooms that are specifically designated for teacher or staff use. The feminine hygiene products provided pursuant to this section are for student use only.

(d) The department of education may develop policies and provide guidance to LEAs and public charter schools to assist local boards of education and public charter school governing bodies in complying with the requirements of this section.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.